Fort Bend County District Court

Cause No. 2024-CV-0022

Karen Gonzalez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 24, 2024
Plaintiff's counsel:	Joshua Whitney, Morris & Miller LLP

PARTIES

Plaintiff Karen Gonzalez is an individual residing in Texas who was the driver and sole occupant of the vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to tranasct insurance business in the State of Texas, which issued the liability and uninsured/underinsured motorist policy under which Plaintiff makes claim. Defendant may be served through its registered agent for service of process as provided by Texas law.

FACTS

On September 12, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in League City, Texas, traveling in the travel lane with the right of way. An operator of a second vehicle, insured under Defendant's policy, attempted to change lanes into the lane occupied by Plaintiff without first confirming that the lane was clear and without signaling adequately. The insured vehicle struck the side of Plaintiff's vehicle in a sideswipe collision, forcing Plaintiff's car to veer and causing a sudden, violent jolt to Plaintiff's head, neck, and upper back. Plaintiff reported the collision to Defendant promptly and submitted all documentation requested.

NEGLIGENCE

The insured operator owed a duty to exercise ordinary care in changing lanes, including the duty to ensure the movement could be made safely and to yield the right of way to traffic already in the lane. The operator breached that duty by changing lanes unsafely and failing to keep a proper lookout. Defendant, as insuerr of the at-fault operator, is liable for the resulting damages to the extent provided by its policy and Texas law. Defendant has further failed to make a prompt, fair settlement of Plaintiff's claim once liability became reasonably clear, in violation of Texas Insurance Code Chapter 541 and Chapter 542.

DAMAGES

As a direct result of the collision, Plaintiff suffered whiplash injuries to the neck and back, with resulting pain, stiffness, headaches, and limited range of motion. Plaintiff has incurred and will continue to incur medical expenses for examination, imaging, and treatment, has lost time from work, and has suffered physical pain and mental anguish. Plaintiff seeks actual damages, statutory interest, attorney's fees, and court costs. Plaintiff demands damgaes in the amount of $51,000.00.